the honor.)[1]

Louis and Frederick were cousins, and in fact had spent part of their adolescence living in the same house; Louis treated his rival well, confining him in relative comfort at the Castle of Trausnitz.

He now began to maneuver towards his ultimate goal: the title of Holy Roman Emperor.

This required him to get control of the prickly and independent-minded north Italians, which he hoped to do by presenting himself as a friend and ally. So, in 1323, Louis appointed an "imperial vicar," the Count of Märstetten, and sent him into Italy to woo the Lombard cities of Milan and Ferrara. From his papal palace at Avignon, John XXII objected. In the absence of a crowned emperor, he insisted, the pope was the protector of the empire and alone had the right to appoint a "vicar" over Italy. Louis refused to retreat from Italy; and on July 17, 1324, John XXII excommunicated the German king.[2]

Perhaps Louis had not expected the pope-in-exile to defend his rights in Italy with such vigor; in any case, the excommunication alarmed him. He still did not have unanimous support within Germany. Some of the electors were actively hoping to replace him, and even those who were on his side were now threatened with excommunication themselves, should they remain allies of a king who was outside the boundaries of the Christian church.

In an effort to shore up his support within Germany without yielding to the demands of John XXII, Louis went to see Frederick the Handsome, still jailed at Trausnitz, and offered to recognize him as joint king (*Mitkönig*). His proposal was carefully detailed: on odd days, his name would appear on state documents, on even days, Frederick's; they would both receive homage of vassals to the German crown; if one set out for Italy, the other would remain in Germany; Frederick's name would appear on Louis's seal, Louis's become part of Frederick's.[3]

Frederick agreed to this elaborate and impractical division of powers (after all, his alternative was an indefinite stay in the Trausnitz dungeon). But now the German electors dug in their heels. *They* had the right to choose the king of Germany, and *none* of them had voted for *both* men. The compromise would savagely undercut their authority.[4]

John XXII also refused to recognize any claim of Frederick's to the throne, condemning him for his willingness to cooperate with the excommunicated Louis. But John XXII was in serious danger of losing his moral high ground. It was increasingly obvious, even to Louis's enemies, that the pope's decrees were aimed at the eventual declaration of his patron, the